



ITN CONTRACT

Ref. No.: PPQ-ITN/04230324/44971365TRAVEL
01/04/2023 – 31/03/2024

**365 TRAVEL AND INVESTMENT
COMPANY LIMITED**

**365 TRAVEL AND INVESTMENT COMPANY LIMITED**

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Vietnam
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Facsimile:

PULLMAN PHU QUOC BEACH RESORT

Group 6, Ban Quy hamlet, Duong Bao area
Duong To commune, Phu Quoc City
Kien Giang Province
Vietnam
1701642536

Telephone: (84) 297 267 9999

Facsimile:

Reservation email: HA248@accor.com

Contact Person:	Ms. Hoang Thi Mai Huong
Position:	Contracting Director
Email:	holy.hoang@365travel.asia
Mobile:	

Contact Person:	Lily Nguyen
Position:	Assistant Director of Sales
Email:	Ha248-sl@pullmanphuquoc.com
Mobile:	+84 (0) 93 263 3688

Validity	01-Apr-23	until:	31-Mar-24
Market	All market except Greater China (including Hong Kong, Taiwan), South Korea		
Currency	VND		
Rate basis	per room per night		

	Validity		Contract rate					Cut-off
Room type	From	Until	Single	Double	Triple Supplement (*) With Extra Bed & Meal Plan		Meal Plan	
					Child	Adult		
Superior	01-Apr-23	31-Mar-24	3,640,000	3,640,000	580,000	930,000	BB	
Deluxe Garden View	01-Apr-23	31-Mar-24	4,110,000	4,110,000	580,000	930,000	BB	
Deluxe Ocean View	01-Apr-23	31-Mar-24	4,470,000	4,470,000	580,000	930,000	BB	
Premium Deluxe Ocean View	01-Apr-23	31-Mar-24	4,580,000	4,580,000	580,000	930,000	BB	
Cabana Pool Access	01-Apr-23	31-Mar-24	5,170,000	5,170,000	700,000	700,000	BB	

(*) **Sofa bed** will be set up for Cabana Pool Access(**) **All Suites and Premium Family (2 bedrooms)** are available separately upon request.

Meal Rate	Validity		Breakfast		Lunch		Dinner	
	From	Until	Buffet		Set		Set	
			Adult	Child	Adult	Child	Adult	Child
	01-Apr-23	31-Mar-24	600,000	300,000	N/A	N/A	N/A	N/A

All Inclusive Offer	Validity		All Meals + Unlimited Beverages from 10am – 10pm			
	From	Until	Adult	Child	Adult	Child
	01-Apr-23	31-Mar-24	2,800,000 Lunch: 12pm – 2pm & Dinner: 6:30pm – 9pm Food: Any 2 dishes from Salt & Pepper and Beach House menu or any 1 dish in Mad Cow menu (dinner) with 'ALL' and 'Platinum' sticker Beverage: Soft drinks, Juices, Coffee & Tea, Milkshake, Smoothies, Tropical Fruit Soda, Draft beers, House wine, Mocktail, Mineral and Sparkling Water (*) Should the hotel offer buffet lunch or buffet dinner on the specific days, guests will be entitled for the buffet without having to pay extra. (**) The offer is not available on 24 & 25 December 2023, 31 December 2023, 01 January 2024			

Full-Board Offer	Validity		Meals + Limited Beverages from 10am – 10pm			
	From	Until	Adult	Child	Adult	Child
	01-Apr-23	31-Mar-24	1,400,000 Lunch: 12pm – 2pm & Dinner: 6:30pm – 9pm Food: Any 2 dishes from Salt & Pepper menu or any 1 dish in Mad Cow menu (dinner) with 'ALL' sticker Beverage: Any 01 drink per meal from Soft drinks, Juices, Coffee & Tea, Draft beer, Mineral Water (*) Should the hotel offer buffet lunch or buffet dinner on the specific days, guests will be entitled for the buffet without having to pay extra. (**) The offer is not available on 24 & 25 December 2023, 31 December 2023, 01 January 2024			



Half-Board Offer	Validity		01 Meal + Limited Beverages from 10am – 10pm			
	From	Until	Adult	700,000	Child	350,000
	01-Apr-23	31-Mar-24	One-time Lunch: 12pm – 2pm OR Dinner: 6:30pm – 9pm Food: Any 2 dishes from Salt & Pepper menu or any 1 dish in Mad Cow menu (dinner) with 'ALL' sticker Beverage: Any 01 drink from Soft drinks, Juices, Coffee & Tea, Draft beer, Mineral Water (*) Should the hotel offer buffet lunch or buffet dinner on the specific days, guests will be entitled for the buffet without having to pay extra (**) The offer is not available on 24 & 25 December 2023, 31 December 2023, 01 January 2024			

Optional Meals	Dates		Event:	Adult	Child
	24-Dec-23		Christmas's Eve	1,755,000	878,000.
	25-Dec-23		Christmas Brunch	1,755,000	878,000.
	31-Dec-23		New Year's Eve	1,755,000	878,000.

CONTRACTED RATES & DISTRIBUTION OF RATES

- Rates in this contract include government tax & service charges and are non-commissionable.
- Contract Rates are valid for bundled, packaged or brochure leisure business only and cannot be offered in markets other than specified.
- Contract Rates cannot be offered by the Tour Operator directly to the consumer via the Internet/online, or by any other internet channels including messengers, through owned, affiliated or subsidiary companies, without prior written approval from Accor (to be given or withheld at Accor's absolute discretion). Internet rates and Tour Operator Contracts are available by contacting the Accor Inbound Sales Office only.
- Rates in this contract are valid ONLY for FIT bookings from 1 to 7 rooms with immediate name-list. Rates for group inquiries (leisure series, ad hoc leisure and MICE groups) are available separately upon request.
- Allotments are exclusively on the basis that the hotel is included in a wholesale program and subject to quarterly review.

TAXES & LEVIES

The statutory taxes and levies added depend on the location of the Hotel and are subject to change upon new directives of local authorities. Should the applicable tax rate and any other taxes and levies are imposed by governmental and/or regulatory bodies increase or decrease after the conclusion of this agreement, rates granted by Hotel will be readjusted accordingly. The applicable tax rate will be the rate in effect at the date of payment.

SPECIAL PROMOTION:

EARLY BIRD OFFER:

Validity: 01-Apr-23 – 31-Mar-24

- 90 days / 25% Off
- 60 days / 20% Off
- 30 days / 15% Off

CHECK IN / CHECK OUT TIME

- Check-in time cannot be guaranteed prior to 15:00hrs. Immediate check in prior to 15:00hrs requires full pre-registration, unless prior arrangements are made directly with the Resort.
- Check out time is 12:00hrs, unless prior arrangements are made directly with the Resort.
- Early check in between 08:00hrs – 15:00hrs and late check out between 12:00hrs – 18:00hrs are subject to 50% of the contract rates while arriving before 08:00hrs and departing after 18:00hrs are charged in full daily contract rates.

CHILDREN POLICY

Accommodation and breakfast are free of charge for up to 2 children under 13 years old (0 - 12.99), sharing parents' room and using existing bedding.

STOP-SALE AND CLOSE OUT DATE

Stop-sale and Close-out notification will be sent via email by our Reservation Team. Kindly advise the Email Address to receive the notifications to avoid disappointment.

SURCHARGE PERIOD: HUNG KING, REUNIFICATION, LABOR & INDEPENDENCE DAY, CHRISTMAS, NEW YEAR AND TET HOLIDAY

Surcharge at VND1,400,000 per bedroom per night applied on 28 April - 02 May 2023, 01 - 03 Sep 2023, 24 Dec 2023 - 02 Jan 2024 and 08 - 16 Feb 2024 (all dates inclusive)

MINIMUM LENGTH OF STAY: FESTIVE SEASON

For any booking checked in during the period of Festive season, minimum 3 nights stay are required on 28 April - 02 May 2023, 24 Dec 2023 - 02 Jan 2024 and 08 - 16 Feb 2024 (all dates inclusive).

PAYMENT & CREDIT TERMS

- Full payment required upon cut-off dates to confirm the booking.
- For bookings with Early Bird Offer, full payment required (non-refundable) after seven (07) days from the date of booking confirmation.
- Full payment is required for all services provided unless credit and billing approval has been established directly with Hotel.
- For companies with approved credit, the Hotel will send a statement of account, and settled by the Tour Operators in full, without producing consent from guests, received within thirty (30) days after tender of invoice. The Hotel reserves the right to withdraw credit facilities provide, subject to Tour Operator's prevailing credit standing with the Hotel.
- Once payment is made, please send a copy of the bank transfer to the Hotel.

**CANCELLATION POLICY**

- All dates except 28 April - 02 May 2023, 01 - 03 Sep 2023, 24 Dec 2023 - 02 Jan 2024 and 08 - 16 Feb 2024 inclusive: Cancel or reduce in stay within 21 days prior to arrival, full charge.
- 28 April - 02 May 2023, 01 - 03 Sep 2023, 24 Dec 2023 - 02 Jan 2024 and 08 - 16 Feb 2024 inclusive: Cancel or reduce in stay within 30 days prior to arrival, full charge.
- Booking with Early Bird Offer is non-refundable and not able to modify on staying period or guest name. The Hotel will apply full charge in case of cancellation or modifying.

NO-SHOW POLICY

In case of a no show where the guest does not arrive, the hotel will apply a charge equivalent to 100% of the entire stay.

REMARKS

No compulsory meal required on Christmas and New Year period.

Early Bird policies is applicable for triple supplement only. It is not applicable for meal rates and surcharge.

Contract rates are not to be offered, knowing or unknowingly, to any party that distributes or retails via the Internet, or to any party that causes to distribution or retailing via the Internet. For online selling, Contract Rates must be bundled or packaged.

COMPLIMENTARY

Return airport shuttle service is provided. Please inform our Reservation Team at least 48 hours prior to arrival.

Wi-fi is available within the Resort's compound.

Swimming Pool (during operation hours), Fitness Centre (24hrs), Tennis Court and Bicycle (both are subject to availability and during day time only).

BANK ACCOUNT DETAILS

Bank name:	VIETNAM JOINT STOCK COMMERCIAL BANK FOR INDUSTRY AND TRADE
Account Name:	MILTON JOINT STOCK COMPANY
Bank Branch:	THANH AN BRANCH
Account Number:	112002918318 (USD) 111002918321 (VND)
Swift Code:	ICBVVNVX

BROCHURE COPY & PHOTO APPROVAL

All brochure copy and photographs produced by Tour Operator depicting the Hotel must be approved by Hotel in advance. When the Hotel is included in the agents' brochure/website, a copy check must be signed off by the Hotel by providing a copy to the Hotel prior to printing. Otherwise all responsibility for incorrect information and liability is that of the Tour Operator. A copy of the brochure/web link is required to send to the Hotel.

RIGHT TO TERMINATE

If either the Tour Operator or the Hotel fails or neglects to perform or observe the terms required under this Agreement and such failure continues for a period of 7 days after service of a written certified notice from the other party ("the non-defaulting party") calling upon the defaulting party to remedy the failure, then the non-defaulting party can request to terminate this Agreement without prejudice to any rights of the parties arising prior to such termination.

Force Majeure Event means an event beyond the control of one Party, which could not reasonably have been foreseen and which effects cannot be avoided by appropriate measures, preventing this Party from performing its obligations performed under this Agreement.

FORCE MAJEURE EVENT BETWEEN THE HOTEL AND THE TOUR OPERATOR

Neither Party shall be liable in case of a failure to perform or a delay in the performance of its obligations hereunder due to a Force Majeure Event which was unforeseeable at the execution date of this Agreement.

The Party affected by the Force Majeure Event shall notify the other Party as soon as reasonably possible of the occurrence of the Force Majeure Event. Such notice shall detail how the Force Majeure Event prevents the performance of its obligations hereunder.

As from the occurrence of said notification, the Parties' respective obligations shall be suspended during the time of the Force Majeure Event, and neither Party shall incur any liability in this regard. However, in any event, the affected Party shall make its best efforts to mitigate the effects of such Force Majeure Event.

If the Force Majeure Event lasts more than thirty (30) days, then the Parties expressly agree to discuss in good faith the impact of the Force Majeure Event on this Agreement and on the Parties' respective obligations hereunder and shall negotiate, in good faith, any amendment, whether temporary or definitive, to be made to this Agreement.

Should the Parties fail to find a mutually acceptable solution within thirty (30) days, then either Party shall be entitled to terminate this Agreement as of right, by written notice to the other Party, without any further formality, without incurring any liability and without any indemnity being due. Termination shall be effective as of the date of receipt of the aforementioned written notice.

In any event, each Party shall bear all its own expenses resulting from the occurrence of the Force Majeure Event.

FORCE MAJEURE EVENT BETWEEN THE HOTEL AND A GUEST

The Hotel or a Guest (i.e. the end customer who books Hotel accommodation services through the Tour Operator distribution channels on an individual basis for leisure purposes in accordance with this Agreement, provided that the end customer is a natural person) shall not be liable in case of a failure to perform or a delay in the performance of its obligations hereunder due to a Force Majeure Event which was unforeseeable at the time of booking.

In any event, for any booking, as the Tour Operator acts as an intermediary between the Hotel and the Guest for the only purpose of facilitating bookings, the Tour Operator cannot and is not authorized to grant more rights to the Guest than granted by the Hotel and as such, the Tour Operator is not authorized to and shall not determine whether a Force Majeure Event has occurred in relation to a booking on behalf of the Hotel and/or on behalf of a Guest, such determination being left to the Hotel's sole discretion. In this regard, should the Hotel and/or a Guest invoke a Force Majeure Event in relation to a booking, the Tour Operator shall only convey any exchanges of information related thereto to the Hotel and/or the Guest.



Any breach of the foregoing by the Tour Operator shall be at the Tour Operator's entire responsibility and the Agent shall indemnify the Hotel of any and all costs incurred in this regard.

If the Hotel is unable to honour a Guest's reservation due to Force Majeure Event, or an exceptional event, the Hotel reserves the right to relocate and transport the Guest.

CONFIDENTIALITY

The Tour Operator confirms and agrees that this Agreement is confidential. The Tour Operator shall not in any circumstance divulge or permit to be divulged the contents of this agreement. Contract may not be transferred from one company to another without specific authorization of the Hotel.

ACCEPTANCE

Upon acceptance, please return a signed copy to us within 30 days of the issue date of this contract; if not, the contract is considered void. All rates are subject to allotment and/or availability.

Tour Operator may not assign or delegate its rights or duties under this Agreement without Hotel's prior approval. This Agreement is governed by and is to be constructed in accordance with the laws of Vietnam. The parties irrevocably agree that the commercial court in the jurisdiction the Hotel is located will have exclusive jurisdiction to settle any dispute which may arise out of or in connection with this contract. If any provision of this Agreement is held to be invalid or unenforceable that provision will be eliminated or limited to the minimum extent possible, and the remainder of the Agreement will have full force and effect. If either party agrees to waive its right to enforce any term of this Agreement, it does not waive its right to enforce any other terms of this Agreement. This Agreement constitutes the entire agreement between the parties, supersedes all other written and oral agreements between the parties concerning its subject matter, and may not be amended except by a writing signed by Hotel and Tour Operator.

On behalf of:

PULLMAN PHU QUOC BEACH RESORT

Mr. Jun Gyu (Jonathan) EOM

Director of Sales and Marketing

Accepted and authorized by:

365 TRAVEL AND INVESTMENT COMPANY LIMITED

Ms. Hoang Thi Mai Huong

Contracting Director

Date: 14-Feb-23

Mr. Pieter DE WEERD
General Manager

Date:

Date: 14-Feb-23